

Court No. - 21

Case :- WRIT - C No. - 2161 of 2018

Petitioner :- Sukhpal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ram Prakash Vishwakarma

Counsel for Respondent :- C.S.C.,Awadhes Kumar Saxena

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Sri Awadesh Kumar Saxena, learned counsel appearing for respondent no. 4 raised a preliminary objection that the petitioner has an efficacious remedy available to him under Clause 6.14 of the Electricity Supply Code, 2005 to approach the appropriate authority seeking the payment of outstanding dues in instalment and thus, writ petition is not liable to be entertained.

Learned counsel for the petitioner finding it difficult to assail the same, sought leave of the Court to permit withdrawal of the writ petition with liberty to avail the remedy by making a proper application before the appropriate authority invoking the provisions of Clause 6.14 of the Electricity Supply Code, 2005.

Prayer made is allowed.

Writ petition accordingly stands dismissed as withdrawn with the liberty to the petitioner to avail the remedy, if so advised.

Order Date :- 16.1.2018

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